

In the case of a forfeiture to the Crown, it was formerly held that there was no equity against the Crown (*d*); but in modern times the equity was admitted, though the precise nature of the remedy was never distinctly ascertained (*e*).

7. **Escheat.** — A lord taking by *escheat* stands on a somewhat different footing, for he does not take through or under the trustee at all; he is not an *assign* of the trustee either in the *per* or *post*; nor does he, as in forfeiture, succeed to the place of the trustee, but claims by a title paramount of his own, by virtue of a condition originally annexed to the land, and wholly independent of the creation of the trust.

Burgess v. Wheate. — Lord Mansfield was of opinion, however, in *Burgess v. Wheate* (*f*), that a trust ought to be binding on the lord, and cited the opinions said to have been expressed by Lord Chief Justice Bridgman and Sir John Trevor (*g*); but as to the words attributed to the former, it appears from his own note-book, that they were never spoken (*h*); and the observation of Sir John Trevor was at the utmost a mere *obiter dictum*. Sir Thomas Clarke, on the other hand, who assisted Lord Mansfield in the case of *Burgess v. Wheate*, thought that *cestui que trust* was no more relievable against the lord by escheat, than against a sale by the trustee to a purchaser without notice (*i*); and Lord Northington's inclination was apparently the same way, though, as the point was not necessarily involved in the question before him, he declined to conclude himself [*248] by any * express and direct opinion (*a*). It is clear that the lord was not bound by a *use*. However, it must be admitted that in modern times the Courts have acted on more liberal principles; and it has been actually decided that where the fee out of which a mortgage term has been

(*d*) *Wike's case*, Lane, 54, agreed.

(*e*) *Burgess v. Wheate*, 1 Eden, 252; and see *Pawlett v. Attorney-General*, Hard. 467, which was a case of forfeiture, though treated by Lord Hale as a case of escheat. And see *suprà*, p. 30.

(*f*) 1 Eden, 177, see p. 229; and

see observations upon Lord Mansfield's argument in 3d edit. p. 281.

(*g*) *Burgess v. Wheate*, 1 Eden, 230.

(*h*) See Ib. 230, note (*a*); and see Sir T. Clarke's observations, Ib. 202.

(*i*) Ib. 1 Eden, 203.

(*a*) Ib. 1 Eden, 246.